

24NWCV01047 24NWCV01047

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-09-22

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CR%2C09%2F22%2F2026

Source SHA-256: 16a403509d1016e616d4e9f7536d861a70d4410dc230bebf73f72c8b5902839

Case Number: 24NWCV01047 Hearing Date: September 22, 2026 Dept: R

#15

MARIA SOLORIO, ET AL. V. SKY ZONE, LLC, ET AL.

CASE NO.: 24NWCV01047

HEARING: Tuesday, September 22, 2026, at 9:30 AM

Plaintiffs' Motion to Strike Defendant Epicent, LLC dba Sky Zone Cerritos's Cross-Complaint is GRANTED, and the Cross-Complaint filed May 27, 2026 is STRICKEN for failure to obtain leave of court as required by Code of Civil Procedure section 428.50, subdivision (c).

Moving Party to give notice.

Background

On April 2, 2024, Plaintiff Maria Solorio ("Solorio") and Ashley Eileen Morales, a minor ("Morales") (collectively, "Plaintiffs") filed the instant action against Sky Zone, LLC ("Sky Zone"), Circustrix Holdings, LLC ("Circustrix"), and Does 1 through 25 (collectively, "Defendants") for general negligence and premises liability. On April 5, 2024, Solorio was appointed guardian ad litem for Morales.

On May 21, 2024, Plaintiffs filed a First Amended Complaint ("FAC"). The FAC alleges that Defendants operated a trampoline park with closely positioned trampolines but failed to

properly manage and supervise patron use.

As a result, an older, larger patron jumped onto the trampoline being used by the minor Plaintiff, causing severe injury to her leg.

On January 14, 2025, Plaintiffs amended the FAC to add Epicent, LLC dba Sky Zone Cerritos ("Epicent") as Doe 1.

Epicent filed an Answer on October 24, 2025, and a verified Answer on February 10, 2026.

On May 27, 2026, Epicent filed a Cross-Complaint against Yovani Gonzalez ("Gonzalez") and Roes 1 through 20 for express indemnity, breach of contract, and declaratory relief.

On August 19, 2026, Plaintiffs filed the instant Motion to Strike Cross-Complaint ("Motion").

Epicent filed an Opposition on September 8, 2026, and Plaintiffs filed a Reply on September 14, 2026.

Legal Standard

Motion to Strike

According

to Code of Civil Procedure section 436:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strikeout any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

Cross-Complaint

According

to Code of Civil Procedure section 428.50:

(a)

A

party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b)

Any

other cross-complaint may be filed at any time before the court has set a date for trial.

(c)

A

party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

Motion to Strike Cross-Complaint

Plaintiffs move to strike the Cross-Complaint filed by Defendant Epicent on May 27, 2026, pursuant to Code of Civil Procedure section 428.50, arguing that Defendant filed the Cross-Complaint nearly 19 months after its Answer and several months after a trial date was set, without leave of court. Plaintiffs contend the late filing causes prejudice and violates section 428.50's mandatory timing requirements.

In its Opposition, Defendant acknowledges that it did not obtain leave, but argues that Plaintiffs failed to meet and confer pursuant to section 435.5. Defendant contends that the Court should allow the Cross-Complaint "in the interests of justice," particularly because the pleading is directed at a nonparty—Yovani Gonzalez—based on a contractual waiver and indemnity agreement. Defendant has filed a concurrent motion for leave to file cross-complaint.

In its Reply, Plaintiffs argue that the meet and confer requirement is not applicable in this instance because it pertains to motions to strike brought pursuant to Code of Civil Procedure section 435 that challenge the contents of a pleading.

However, the instant Motion is brought pursuant to section 428.50.

Having considered the moving papers, Opposition, and Reply, the Court makes the following findings.

Defendant Epicent filed an Answer on October 24, 2025, and a verified Answer on February 10, 2026. A trial date was set on October 9, 2025, for May 24, 2027. On May 27, 2026, Defendant filed a Cross-Complaint against Yovani Gonzalez without prior leave of court. Defendant acknowledges that leave should have been obtained under section 428.50.

Balancing the statutory requirement with the remedial authority described in the papers, the Court determines that the Cross-Complaint was procedurally improper when filed and is subject to being stricken for lack of prior leave. Nevertheless, the statute relied upon by Defendant allows the Court to consider granting leave “in the interest of justice.” On this record, the most efficient course is to strike the improperly filed Cross-Complaint without prejudice to Defendant’s concurrently filed motion for leave, so that the procedural defect is cured, if at all, through the mechanism section 428.50, subdivision (c) contemplates. The meet-and-confer requirement dispute does not alter the dispositive fact that the Cross-Complaint was filed without the required leave after a trial date was set.

As to prejudice, Plaintiffs assert the late addition of a new party risks delaying trial and prejudicing Plaintiffs, while Defendant asserts that the Cross-Complaint was filed roughly a year before trial and has identified no concrete prejudice. These arguments will be addressed and evaluated in connection with the motion for leave to file cross-complaint.

Accordingly, the Court will strike the Cross-Complaint for failure to obtain leave before filing, without prejudice to Defendant’s pending motion for leave and without adjudicating the merits of the parties’ claims.

Conclusion

Plaintiffs’ Motion to Strike Defendant Epicent, LLC dba Sky Zone Cerritos’s Cross-Complaint is GRANTED, and the Cross-Complaint filed May 27, 2026 is STRICKEN for failure to obtain leave of court as required

by Code of Civil Procedure section 428.50, subdivision (c).